

24NWCV00964 24NWCV00964

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Case Number: 24NWCV00964 Hearing Date: July 21, 2026 Dept: L

Defendant American Honda Motor

Co., Inc.'s Motion to Compel Vehicle Inspection is GRANTED.

Defendant is awarded reduced

sanctions in the amount of \$750.00, payable within 60 days.

Defendant to give notice.

Background

This is a lemon law action. On

March 29, 2024, Plaintiffs Beatriz Alvarez and Daniel Alvarez ("Plaintiffs")

filed this action against Defendant American Honda Motor Co., Inc. ("AHM") and

Does 1 to 10. The Complaint alleges Plaintiffs purchased a 2018 Honda Accord

("Subject Vehicle") on June 18, 2018, whereby AHM issued a written warranty.

The Complaint alleges the following causes of action: 1) breach of express

warranty (Civ. Code § 1793.2(d)), 2) breach of implied warranty (Civ. Code §§

1791.1, 1794, 1795.5), and (3) violation of Civil Code § 1793.2(b).

AHM now moves to compel the

inspection of the Subject Vehicle. AHM requests sanctions in the amount of \$1,540.00.

Legal Standard

"Any party may obtain discovery .

. . by inspecting, copying, testing, or sampling documents, tangible things,

land or other property, and electronically stored information in the

possession, custody, or control of any other party to the action." (Code Civ.

Proc., § 2031.010, subd. (a).)

"Within 30 days after service of a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed shall serve the original of the response to it on the party making the demand, and a copy of the response on all other parties who have appeared in the action, unless on motion of the party making the demand, the court has shortened the time for response." (Code Civ. Proc., § 2031.260, subd. (a).) 22

If a party to whom demands for inspection are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (b).)

If a party filing a response to a demand for inspection, copying, testing, or sampling thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance. (Code Civ. Proc., § 2031.320, subd. (a).)

Discussion

On April 25, 2024, AHM served its initial Notice of Vehicle Inspection, setting the inspection for July 11, 2024. (Tolmasoff Decl., ¶ 4, Exh. A.) On July 3, 2024, Plaintiffs served objections, but did not provide alternative dates. (Tolmasoff Decl., ¶ 5, Exh. B.)

On April 8, 2025, AHM proposed August 19, 2025 for the new inspection date. (Tolmasoff Decl., ¶ 6, Exh. C.) The parties met and conferred, and agreed on that date. (Tolmasoff Decl., ¶¶ 7-9, Exh. C.) On June 2, 2025, AHM served an Amended Notice of Vehicle Inspection, setting the inspection for August 19, 2025. (Tolmasoff Decl., ¶ 10, Exh. D.) However, on August 14, 2025, Plaintiffs served objections stating that their expert was unavailable due to an emergency. (Tolmasoff Decl., ¶ 11, Exh. E.) AHM attempted to request a new date, but none was provided. (Tolmasoff Decl., ¶¶ 12-13, Exhs. E-F.)

On October 13, 2025, AHM served a

Second Amended Notice of Vehicle Inspection, setting the inspection for January 19, 2026. (Tolmasoff Decl., ¶ 14, Exh. G.) On January 8, 2026, Plaintiffs again served objections, asserting that they were unavailable. (Tolmasoff Decl., ¶ 15, Exh. H.)

The parties met and conferred further, and Plaintiffs' counsel confirmed that the inspection was being canceled due to purported ongoing settlement discussions. (Tolmasoff Decl., ¶ 17, Exh. I.) When the case did not settle, on March 19, 2026, AHM requested that Plaintiffs provide their availability for a vehicle inspection. (Tolmasoff Decl., ¶ 18, Exh. J.) To date, Plaintiffs have failed to offer a date for the vehicle inspection. (Tolmasoff Decl., ¶ 19.)

AHM thus requests that the Court compel Plaintiffs to produce the vehicle for inspection within 20 days of this order.

In opposition, Plaintiff argues that this Motion is untimely. Specifically, Plaintiffs served their objections most recently on January 8, 2026. AHM filed and served this Motion on March 26, 2026, one month after the 45-day deadline pursuant to Code of Civil Procedure section 2031.310, subdivision (c).

In reply, AHM clarifies that it does not seek relief under Plaintiff's cited code section. Specifically, AHM does not seek an order compelling further written responses to an inspection demand. AHM seeks an order compelling Plaintiffs to produce the Subject Vehicle for inspection after multiple attempts to schedule a date.

The Court agrees with AHM that this Motion is not brought under Code of Civil Procedure section 2031.310, subdivision (c) [pertaining to motion to compel further responses to inspection demands]. Thus, the 45-day jurisdictional timeline does not apply here. Further, Plaintiff has failed to provide justification as to why they have been unable to schedule a date.

Thus, the Court analyzes this Motion under Code of Civil Procedure section 2031.300, subdivision (b) [pertaining to motions to compel initial responses to inspection demands], or alternatively, section 2031.320, subdivision (a) [pertaining to motions to

compel compliance with a party's statement of intention to comply with an inspection demand], cited by AHM. Thus, the 45-day deadline cited by Plaintiff does not apply.

The Court finds that each of Plaintiffs' objections (i.e., initial responses) were served more than 30 days from the date the inspection demand was served, in violation of Code of Civil Procedure section 2031.260, subdivision (a). Thus, Plaintiffs' responses were untimely and amounted to no responses at all. Further, Plaintiffs made multiple representations that they would provide alternative dates but failed to do so. The bottom line is that the parties have been unable to determine a date for the vehicle inspection for over two years.

Accordingly, AHM's Motion to Compel Vehicle Inspection is granted. The parties shall meet and confer to determine the date of the vehicle inspection. The deposition shall take place no later than 30 days from the date of the Court's issuance of this order. The date may be extended by agreement of the parties.

Sanctions

"[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party . . . who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.300, subd. (c).)

AHM request sanctions in the amount of \$1,540.00.

The Court awards reduced sanctions in the amount of \$750.00, payable within 60 days.